

determine if section 8 tenants were subjected to different terms and conditions. CRD seeks information including rent rolls, rent increase notices, and rent listings for the last three years.

- (4) Relevant Communications. (*Interrogatories Nos. 17 and Request for Production of Documents Nos. 13, 14 & 18*). CRD seeks information reflecting communication related to decisions about section 9 tenants.

(*Id.*, at p. 13-14).

CRD avers that Arcadia as failed to comply with discovery. (*Id.*, at p. 14-15). Arcadia served responses to initial discovery on November 19, 2025. (*Id.*, at p. 15.). CRD notes deficiencies in responses as noted above. After meeting-and-conferring Arcadia provided supplemental production on January 23, 2026. (*Id.*). CRD met-and-conferred with Arcadia, which provided written responses, but declined to discuss further or comply. (*Id.*). CRD argues that Arcadia’s assertion of privacy and confidentiality interests lack merit given the type of investigation. (*Id.*). CRD emphasizes its compelling interest in prohibits discrimination as outweighing any privacy interests of former and current rental applications. (*Id.*). CRD also notes its investigations are confidential pursuant to Government Code section 11183. (*Id.*). CRD also asserts Arcadia fails to show that the discovery is overboard or unduly burdensome. (*Id.*). CRD asserts that the requested information should be maintained as part of Respondent’s course of business. (*Id.*, at p. 16).

CONCLUSION

Based on the foregoing, the Court will hear oral arguments. Parties to appear.

Calendar Lines # 4

Case Name Teng Wu vs General Motors, LLC

Case No. 22CV397674

Motion for Attorney’s Fees, Cost, and Multiplier

I. BACKGROUND

Before the court is Plaintiff Teng Wu’s motion for attorney’s fees, costs and enhancer based on a resolution of Song-Beverly Consumer Warrant Act claim arising out of Plaintiff’s 2019 Chevrolet Bolt, vehicle identification number 1G1FY6S04K4135781. (Plaintiff’s Motion, p. 7). Plaintiff accepted a 998 offer in the amount of \$55,000.00 cash plus pre-judgment interest in the amount of \$15,279.46 for a total settlement amount of \$70,279.46 (*Id.*). Based on this resolution, plaintiff asserts itself as the prevailing party and seeks a total of \$45,851.96¹ in attorney’s fees, costs, and multiplier. (Plaintiff’s Reply Brief, p. 5). The motion was filed on September 8, 2025, the motion was accompanied with a proof of service indicating electronic service on September 4, 2025.

On May 27, 2026, Defendant Ford Motor Company (“Ford”) filed opposition papers on the grounds that the plaintiff’s motion is untimely and the amount sought is unreasonable and excessive given the type of case and 23 months of inactivity. (Defendant’s Opposition, p. 5). Plaintiff filed a reply brief on June 2.

The Court has carefully reviewed the following: Plaintiff’s notice and memorandum of points and authorities (totaling 21 pages); Declaration of Payam Shahian in support of plaintiff’s motion and attached Exhibits 1-28

¹ The Court notes that in the original moving parties, Plaintiff Wu sought \$47,401.96, but in its subsequent reply brief, the plaintiff seeks a total amount of \$45,851.96. There is a \$1,550.00 reduction from the original \$4,000.00 amount for opposition briefs and appearing for this hearing.

(totaling 277 pages); Declaration of Angel M. Baker in support of plaintiff's motion and attached Exhibits 1-4 (totaling 48 pages); proof of service (totaling 3 pages); Plaintiff's Exhibit List (totaling 7 pages); Plaintiff's request for judicial notice (totaling 7 pages); Defendant's opposition (totaling 24 pages); Declaration of Xylon Quezada in support of the defendant's opposition² (totaling 7 pages); and the pleadings.

II. LEGAL STANDARD

A. ATTORNEY'S FEES AND COST

Pursuant to Code of Civil Procedure section 1033.5(a)(1), a prevailing party is entitled to recover its attorney's fees when authorized by contract, statute, or law. (*See also*, Civ. Code § 1717(a)). "A successful party means a prevailing party, and [a party] may be considered prevailing parties for attorney's fees purposes if they succeed on any significant issue in litigation which achieves some of the benefit the parties sought in bringing suit." (*Bowman v. City of Berkeley* (2005) 131 Cal.App.4th 173, 178).

In a lemon law action, costs and expenses, including attorney's fees, may be recovered by a prevailing buyer under the Song-Beverly Act. (Civ. Code, § 1794(d)). Section 1794 provides: "If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." (Civ. Code, § 1794).

Thus, the statute includes a "reasonable attorney's fees" standard. The attorney bears the burden of proof as to "reasonableness" of any fee claim. (Code Civ. Proc., § 1033.5(c)(5)). This burden requires competent evidence as to the nature and value of the services rendered. (*Martino v. Denevi* (1986) 182 Cal.App.3d 553, 559). "Testimony of an attorney as to the number of hours worked on a particular case is sufficient evidence to support an award of attorney fees, even in the absence of detailed time records." (*Ibid.*).

B. CALCULATION FOR FEES

In determining a reasonable attorney fee, the trial court considers the lodestar, i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate. (*Warren v. Kia Motors America, Inc.* (2018) 30 Cal.App.5th 24, 36). The lodestar may then be adjusted based on factors specific to the case in order to fix the fee at the fair market value of the legal services provided. (*Ibid.*) These facts include (1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, (4) the contingent nature of the fee award. (*Ibid.*). "The courts repeatedly have stated that the trial court is in the best position to value the services rendered by the attorneys in his or her courtroom, and this includes the determination of the hourly rate that will be used in the lodestar calculus. In making its calculation, the court may rely on its own knowledge and familiarity with the legal market, as well as the experience, skill, and reputation of the attorney requesting fees, the difficulty or complexity of the litigation to which that skill was applied, and affidavits from other attorneys regarding prevailing fees in the community and rate determinations in other cases." (*569 East County Boulevard LLC v. Backcountry Against the Dump, Inc.* (2016) 6 Cal.App.5th 426, 437, citations omitted).

III. ANALYSIS

Plaintiff seeks attorney's fees, cost, enhancer, and anticipated fees and costs in total amount of \$45,851.96 based on a \$70,279.46 resolution of a claim brought under the Song-Beverly Act as follows: \$55,000.00 cash based on a 998 offer and \$15,279.46 in pre-judgment interest. (Plaintiff's motion, p. 7). The breakdown of the total amount consists of the following: (1) \$30,784.00 in attorney's fees based on 60.2 hours spent by 16 attorneys; (2) a 1.35 multiplier on

² Declaration of Quezada reference exhibits A-X, but no such attachments were filed with the Court. There is an attached Exhibit Y reflecting the reduction of hours and fees.

the attorney fees in the amount of \$10,774.40; (3) \$1,843.56 in costs and expenses; and (4) an anticipated additional \$2,450.00 for Plaintiff's counsel to review Defendant's Opposition, draft the Reply, and attend the hearing on this Motion. (*Id.*).

The plaintiff seeks judicial notice of 26 separate documents Exhibits 1-26 to establish various Song-Beverly cases. The court denies this request as it will not take the substance of the document for the truth of the matter and relevancy to the extent that the Court will engage in an individual assessment of the case at hand. However, the Court has reviewed the documents.

Defendant opposes the motion on the following grounds: the motion is untimely, the attorney's fees are excessive, unreasonable, padded, overstaffed; plaintiff has not met its burden of proving costs; a multiplier is unwarranted given the straightforward nature of the case and plaintiff's use of boilerplate templates for the complete, discovery, and pleadings; and that anticipated costs should be rejected. (Declaration of Quezada, p. 2-3). Defendant accentuates that from March 31, 2022 through May 25, 2022, plaintiff counsel's billing records show no activity. (*Id.*). Accordingly, defense seeks to strike the 45.1 hours for a total reduction of \$22,736.00 in attorney's fees incurred in preparing the motion. (Defendant's Opposition, Exhibit Y, p. 23). Defendant avers that no multiplier is warranted as the plaintiff failed to show any unique skill in dealing with any novel or difficult issues. Rather, Defendant asserts that the plaintiff served standard template-based pleadings, letters, and discovery work that was similarly filed in every Song-Beverly matter that SLP files against Defendant General Motors (Declaration of Quezada, p. 2-3). Further, defendant contends that like "clockwork" the plaintiff submitted "routine" template letters and motions common in other cases that did not bear substantively unique work. (*Id.*). Defendant also asserts that plaintiff has not meet its burden of proving costs and anticipated costs.

A. ATTORNEY'S FEES

Plaintiff's counsel asserts it would not have received the 998 offer without its diligent efforts including: filing a Complaint; First Amended Complaint; propounding discovery; filing a motion to compel; filing an opposition to defendant's demurrer and motion to strike; responding to discovery; filing eight motions in limine; reviewing two 998 offers made by defense (upon review of the file, the first 998 offer on or about 12/20/24 was for \$27,000.00 and the second 998 offer on or around 1/24/2024 was for \$55,000.00 case and pre-judgment interest in the amount of \$15,279.46 for a total of \$70,279.46 in the amount of \$15,279.46 for a total of \$70,279.46); and attending multiple court hearings. (Plaintiff's motion, p. 8; Declaration of Angel M. Baker, p. 4-5). Plaintiff emphasizes that the second 998 offer that ultimately resolved the case was made three days before trial. (*Id.*, at p. 9). Plaintiff rejects defense's argument that efforts were excessive and unnecessary, and asserts its right to prepare for trial. (*Id.*). Plaintiff counsel asserts that but for its efforts, the higher 998 offer that resulted in resolution would not have occurred. Plaintiff seeks 60.20 hours for attorney's fees. Plaintiff claims that although 15 attorneys and 1 law clerk were staffed on the case, only 6 attorneys (Elizabeth Larocque, James Carroll, Mark Gibson, Jared Kaye, Ian McCallister, and Rebecca Neubauer) and 1 law clerk (Yenok Tantanyan), accounted for 40.8 of the 60.2 hours claimed. (*Id.*, at p. 16, fn. 8). Plaintiff asserts that the remaining attorneys, such as attorneys. (*Id.*).

Plaintiff sets forth the experience of SLP attorney's (Declaration of Shahian, p. 20) and also sets forth a Laffey Matrix fees and argues that its fees are lower than attorney's in this region. The six attorneys who were primarily assigned to the case submit rates as follows:

James Carroll 11-19 \$1,023.84 (\$948 x 1.08) \$595
Elizabeth Larocque 20+ \$1,232.28 (\$1141 x 1.08) \$650
Mark Gibson 11-19 \$1,023.84 (\$948 x 1.08) \$485
Rebecca Neubauer 11-19 \$1,023.84 (\$948 x 1.08) \$435
Jared Kaye 4-7 \$627.48 (\$581 x 1.08) \$395

Ian McCallister 20+ \$1,232.28 (\$1141 x 1.08) \$610

Plaintiff's counsel also submitted a timekeeper summary under Exhibit 28, Declaration of Shahian, p. 274-277.

Exhibit 28, Declaration of Shahian, p. 269-272).

Timekeeper Summary

Carroll, James	2022	8.1	\$595.00	\$4,819.50
Carroll, James	2023	3.7	\$595.00	\$2,201.50
Carroll, James	2024	0.8	\$595.00	\$476.00
Carvalho, Tionna	2024	0.4	\$595.00	\$238.00
Carvalho, Tionna	2025	2.4	\$650.00	\$1,560.00
Gibson, Mark	2022	3.0	\$485.00	\$1,455.00
Hollingsworth, Tyler	2022	2.6	\$595.00	\$1,547.00
Kaye, Jared	2023	3.9	\$395.00	\$1,540.50
Larocque, Elizabeth	2022	8.2	\$595.00	\$4,879.00
Larocque, Elizabeth	2025	0.8	\$650.00	\$520.00
Liou, Regina	2023	2.3	\$475.00	\$1,092.50
Liou, Regina	2024	0.5	\$525.00	\$262.50
McCallister, Ian	2024	0.8	\$595.00	\$476.00
McCallister, Ian	2025	2.4	\$610.00	\$1,464.00
Mendoza, Albert	2023	1.5	\$390.00	\$585.00
Neubauer, Rebecca	2022	3.6	\$435.00	\$1,566.00
Orte, Maro	2025	2.2	\$525.00	\$1,155.00
Randolph, Ebony	2023	0.8	\$375.00	\$300.00
Sanaia, Nino	2023	1.1	\$425.00	\$467.50
Sanaia, Nino	2024	1.0	\$435.00	\$435.00
Tantanyan, Yenok	2025	5.5	\$345.00	\$1,897.50
Thomas, Nadia	2022	1.7	\$450.00	\$765.00
Tirmizi, Rabiya	2022	0.4	\$360.00	\$144.00
Tirmizi, Rabiya	2023	2.5	\$375.00	\$937.50
Total:				\$30,784.00

Defendant argues that the attorney's fees request which came eight months after the plaintiff accepted the defendant's 998 offer is untimely. Further, the request for \$30,784.00 for 60.2 alleged hours of billable time is excessive, unreasonable, padded, and unreasonable. (Declaration of Quezada, p. 5). Defendant avers that staffing the case with 16 attorneys, 7 of whose billable hours exceed \$500.00 is unreasonable and excessive based on the straightforward nature and minimal litigation conducted in this matter. (Defendant's opposition, p. 6). Defendant stresses that based on plaintiff counsel's billing records there is an over 23 months of inactivity and the matter resolved in less than a year. (*Id.*). Defense asserts that the matter did not go to trial (*Id.*). Defendant also avers that the bulk of its complaint, letters, discovery were boilerplate and templated from similar Song-Beverly claims filed against GM. (*Id.*, at p. 7). Defendant also contends that no compensation should be allocated to 20 hours of billed hours amounting to \$10,340.00 for work relating to the fraud claim, which was baseless. (*Id.*, at p. 11-12). Defendant seeks a reduction of 19.1 hours for blocked billing and excessive time as well as any time relating to the templated motion to compel as the motion was never heard. (*Id.*). In total, defense seeks at least 45.1 hours or \$22,736.00 to be deducted as not properly compensable and a 15% or \$1,270.20 reduction to address padding. (*Id.*, at p. 19). Defendant claims that no more than \$6,840.80. Below is Exhibit Y to defendant's opposition: p. 21-24.

TASK REDUCTION IN HOURS IN FEES

Fraud-Related Time 10.0 \$5,170.00
Drafting Templated Complaint 1.3 \$773.00
Business Record Subpoenas 0.8 \$476.00
Templated Discovery Requests 2.5 \$1,212.50
Templated Meet and Confer 1.8 \$1,050.00
Templated Discovery Responses 1.0 \$595.00
Templated & Unnecessary Motion to 15.2 \$7,706.50
Compel Further Responses
Templated Motions in Limine 2.9 \$1,725.50
Templated Fee Opposition 2.0 \$690.00
Block-Billed Time Preparing For & 7.6 \$3,584.00
Attending Conferences
TOTAL (Lodestar) 45.1 \$22,736.00

The Court has reviewed the briefing and specifically the time entries submitted, and the arguments presented in support of the hourly rates requested and opposition. The Court reduces 1 hour for the initial complaint and supporting documents for attorney Tyler Hollingsworth at the rate of \$595.00; court reduces 0.6 hours from attorney Hollingsworth for drafting subpoena for business records from custodian at \$595.00 per hour; 2 hours reduced from straightforward basic and template form interrogatories, special interrogatories, and request for production, set one is overcharged given the basic nature of the case at the hourly rate of \$485 per hour from Mark Gibson; reduction of templated meet and confer hours by 1.8 hours in the hourly average rate of \$583.33; reduction of 6 hours at the hourly rate of \$595.00 from attorney Elizabeth Larocque for templated motion to compel further responses; reduction of 1 hour for drafting motions in limine at the rate of \$610.00 from Ian McCallister; and reduction of 3 hours at the average hourly rate of \$471.58 for block billing on preparation for and attending conferences.

The Court DENIES the full amount of attorney's fees requested in the amount of \$30,784.00, and instead GRANTS attorney's fees in the amount of \$22,217.32

B. COST

Plaintiff seeks \$1,843.56 in costs and expenses related to litigating and resolving this matter. (Exhibit 28 of Declaration of Shahian). The costs were incurred from April 19, 2022, the date the plaintiff's Complaint was filed to August 8, 2025.

Defendant opposes all costs and argues that the motion is untimely, Plaintiff's failure to allow GM to review and discuss a resolution for costs, and that plaintiff has not met its burden. (Defendant's opposition, p. 20).

After reviewing the documents presented, the costs are associated with filing, electronic filing, service, tracking, and delivery and postage fees. The Court awards \$1,843.56 in costs and expenses.

C. MULTIPLIER

Plaintiff seeks a 1.35 enhancer in this matter amounting to \$10,774.40 on the grounds that: (1) "This excellent result alone merits a multiplier enhancement," in reference to the \$70,000.00 recovery. (Plaintiff's motion, at p. 16); (2) the risks that non-recovery or delay was substantial. Plaintiff states that having taken the matter on a contingency basis, it assumed the risk of not getting paid at all or for several years. Thus, it seeks a 1.35 multiplier of \$4,393.38 to reflect the risk of non or delayed payment. (*Id.*) and; (3) Plaintiff argues that the delay of payment justifies a multiplier citing that the complaint was filed on January 18, 2024 and it has not been paid for nearly two years. (*Id.*).

Defendant opposes the multiplier as unwarranted as enhancers are reserved for exception situations and argues that the plaintiff has not met its burden of showing that the case was novel, difficult, or superlative as to the outcome. (Defendant’s opposition, p. 6, and 17-18). Defendant avers that the plaintiff recycled template pleadings, discovery, and motion used in its practice of high volume Song-Beverly claims, yet billed casework as original or unique. Defendant emphasizes that there was no billing activity for over 23 months, and notes that the case settled in less than a year. (*Id.*).

Given the basic nature of the Song-Beverly claim in this matter; lack of showing of bespoke work demonstrating novel or difficult work required in this matter; high volume and type of claims handled by SLP in Song-Beverly matters that would not present a higher risk in contingency cases or inability to take on other cases; early resolution of the matter that did not require further discovery, motions, depositions; the Court does not find that Plaintiff has demonstrated that a multiplier is warranted in this case. Therefore, the Court DENIES Plaintiff’s request for a 1.35 enhancer.

D. ESTIMATED FURTHER FEES AND COSTS

Plaintiff seeks \$2,450.00³ for time to review Defendant’s opposition papers, prepare a reply brief, and anticipated appearance for this hearing. As noted above, Plaintiff filed a reply brief on June 2 addressing the defense’s opposition. It is unclear whether any appearance will be made and if such an appearance is made, how much time would be expended on the straightforward motion after review of the Court’s analysis on the tentative order.

The defendant opposes the motion for this amount on similar grounds stated above.

The Court DENIES the request for \$2,450.00, but GRANTS \$1,190.00 for two hours of time at the hourly rate of \$595.00 for time spent on reviewing, preparing and submitting the reply brief.

IV. CONCLUSION

Based on the foregoing, the Court awards the plaintiff a total of \$29,250.82 that consists of \$26,217.26. in attorney’s fees and \$1,843.56 in costs; \$0 for any multiplier as the request for a 1.35 enhancer is DENIED; and \$1,190.00 for preparing and filing reply brief.

Moving party to prepare the formal Order.

Calendar Lines # 5
Case Name City and County of San Francisco vs Matt Pear et al
Case No. 25CV468882
Motion to Bifurcate Trial of Complaint for Declaratory Relief

I. BACKGROUND

A. BRIEF FACTUAL BACKGROUND

The underlying dispute arises from an 80-foot wide strip of land California (“The Pipeline Property”) bisecting the property located at 555 Showers Avenue and 398 Ortega Avenue in Mountain View, owned by Defendants Pear’s family since the early 1900s and currently Defendants Mark Pears and Matt Pears (“the Pears” or “Cross-Complainants”). (Plaintiff’s Complaint and Declaration of Matt Pearl). In 1949, the City’s Board of Supervisor adopted a resolution to acquire the Pipeline Property for the operation of underground water pipelines as part of the City’s Hetch Hetchy water system. (CCSF’s Complaint). The City filed a complaint against the Pears’

³ The Court notes that this amount reflected in Plaintiff’s reply brief is a reduction from the \$4,000.00 that the plaintiff originally sought as an estimated cost in the moving papers.